

United States District Court
Southern District of Texas
FILED

DEC 30 2002

Michael N. Milby
Clerk of Court

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
BROWNSVILLE DIVISION

NICOLAS REYES, INDIVIDUALLY, and §
MAGDA REYES, INDIVIDUALLY AND AS §
NEXT FRIEND OF MINORS JUAN AMAYA, §
SERGIO REYES AND ANISSA REYES §

V. §

CASE NO. **8-02-237**

PORFIRIO ANAYA AND THE UNITED §
STATES DEPARTMENT OF §
JUSTICE/IMMIGRATION AND §
NATURALIZATION SERVICE §

PLAINTIFFS' ORIGINAL COMPLAINT

TO THE HONORABLE JUDGE OF SAID COURT:

Plaintiffs Nicolas Reyes, individually, and Magda Reyes, individually and as next friend of minors Juan Amaya, Sergio Reyes and Anissa Reyes file suit against Porfirio Anaya and the United States Department of Justice/Immigration and Naturalization Service and for cause of action will show the following:

1. PRELIMINARY STATEMENT

a. Plaintiffs intend to pursue a claim for damages against the defendants as a result of an October 13, 2001 automobile accident involving the plaintiffs and a U.S. Border Patrol vehicle driven by Porfirio Anaya.

2. PARTIES

a. Plaintiffs are individuals who reside in the city of Brownsville, County of Cameron, and State of Texas.

b. Defendant, Porfirio Anaya, is an individual who resides in Hidalgo County, Texas. Defendant

Anaya may be served with process at his place of employment with the United States Border Patrol, 3902 S. Expressway 83, Harlingen, Texas 78550.

c. Defendant, the United States Department of Justice/Immigration and Naturalization Service, may be served with process by serving Michael T. Shelby, United States Attorney for the Southern District of Texas, at P.O. Box 61129, Houston, Texas 77208, and by serving the Department of Justice/Immigration and Naturalization Service, Office of the Regional Counsel, Central Region, 7701 N. Stemmons Freeway, Dallas, Texas 75247.

3. JURISDICTION AND VENUE

a. This Court has jurisdiction pursuant to 28 U.S.C.A. § § 2671-2680, commonly known as the Federal Tort Claims Act.

b. Venue is appropriate in this district because the accident made the basis of this suit occurred in this district.

4. FACTS ON WHICH SUIT IS BASED

a. On October 13, 2001, plaintiffs were traveling west on U.S. 281 in the proper lane of traffic. Defendant, Porfirio Anaya, was driving a U.S. Border Patrol vehicle west on the improved shoulder of U.S. 281 in front of plaintiffs' vehicle. Defendant Anaya attempted to make a u-turn when it was unsafe to do. As a result, the defendant's vehicle suddenly and without warning struck the plaintiffs' vehicle. Plaintiffs suffered serious injuries as a result of defendant Anaya's negligence.

b. Nothing plaintiffs did or did not do caused or in any manner contributed to the cause of this accident. As a result of the impact, plaintiffs sustained physical injuries. The plaintiffs' pain is and continues to be sharp, constant and severe. The effect of their injuries is permanent in nature, and in reasonable probability, plaintiffs will suffer for a long time into the future if not for the balance

of their natural life.

c. Under the circumstances, the person responsible for the operation of the truck, defendant Anaya, as a private person, would be liable to the plaintiffs for their damage resulting from the collision.

d. The vehicle defendant Anaya was driving at the time of the accident was owned by the U.S. Border Patrol. The collision occurred while Defendant Anaya was an employee of the U.S. Border Patrol acting in the scope of his office and employment with the United States Border Patrol.

e. Prior to filing this lawsuit, plaintiffs presented their claim in writing to the United States Department of Justice/Immigration and Naturalization Service for damages incurred as a result of the collision. That claim was denied by the defendant.

f. Defendant had a duty to exercise the degree of care that a reasonably careful person would use to avoid harm to others under circumstances similar to those described herein. Plaintiffs' injuries were proximately caused by defendant Anaya's negligent, careless and reckless disregard of said duty. The negligent, careless and reckless disregard of duty of defendant consisted of, but is not limited to, the following acts and omissions:

1. In failing to keep such a lookout as would have been kept by a person exercising ordinary care and prudence under the same or similar circumstances;
2. In failing to identify obvious and apparent signs of danger which would result by driving in an unsafe manner;
3. In failing to take proper evasive action to avoid the collision;
4. In making a u-turn when it was unsafe to do so;
5. In moving from one lane to another when it was unsafe to do so;

5. DAMAGES

a. As a result of the defendant's negligence, plaintiffs have suffered severe personal injuries and property damages. Plaintiffs have also suffered mental anguish and emotional distress. Plaintiffs plead for damages in the following amounts:

- | | | |
|----|------------------|-------------|
| 1. | Nicolas Reyes: | \$15,000.00 |
| 2. | Magda Reyes: | \$20,000.00 |
| 3. | Juan Amaya: | \$13,000.00 |
| 4. | Sergio Reyes: | \$6,000.00 |
| 5. | Anaissa Reyes: | \$2,500.00 |
| 6. | Vehicle Damages: | \$6,565.89 |

6. JURY DEMAND

a. The plaintiffs demand a trial by jury.

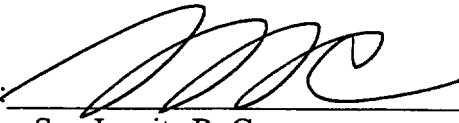
7. PRAYER

a. For these reasons, plaintiffs request that defendants be cited to appear and answer, and on final trial plaintiffs have:

1. Judgment against defendants for a sum in excess of the minimum jurisdictional limits of the Court, with interest at the legal rate from day of accident until judgment;
2. Pre-judgment interest as provided by law;
3. Post-judgment interest as provided by law;
4. Costs of suit; and
5. Such other and further relief to which plaintiffs may be justly entitled.

Respectfully submitted,

LAW OFFICES OF
EZEQUIEL REYNA, JR., L.L.P.

By: 
San Juanita R. Campos
State Bar No. 03733090

702 W. Expressway 83, Suite 100
Weslaco, Texas 78596
(956) 968-9556 Telephone
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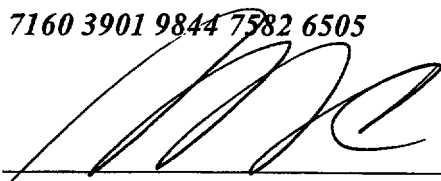
CERTIFICATE OF SERVICE

I hereby certify that a copy of Plaintiffs' Original Complaint and Summons has been served on this the 23rd day of December, 2002, to the following:

Agent Porfirio Anaya
U.S. Border Patrol
3902 S. Expressway 77
Harlingen, Texas 78550
Via Certified Mail Return Receipt Requested No. 7106 4575 1294 0065 8006

United States Department of Justice/INS
Michael T. Shelby
United States Attorney for the Southern District of Texas
P.O. Box 61129
Houston, Texas 77208
Via Certified Mail Return Receipt Requested No. 7160 3901 9844 7582 6499

Department of Justice/INS
Office of the Regional Counsel, Central Region
7701 N. Stemmons Freeway
Dallas, Texas 75247
Via Certified Mail Return Receipt Requested No. 7160 3901 9844 7582 6505


San Juanita R. Campos



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December 23, 2002

U.S. District Court
600 East Harrison, 1st Floor
Brownsville, TX 78520

Certified Article Number

7160 3901 9844 7582 3368

SENDER RECORD

RE: Nicolas Reyes et al vs. Porfirio Anaya and The United States Department of
Justice/Immigration and Naturalization

Dear District Court:

Enclosed please find a copy and (1) original of Plaintiffs' Original Petition in the above-referenced matter.

Please file and stamp-file the copy. A check #3270 in the amount of \$150.00 is being provided for the filing fee. Please prepare (2) two summons and a representative from our office will stop by your office and pick them up. With this letter, all parties are being provided with a copy. If you have any questions concerning this matter, feel free to contact our office.

Respectfully,

LAW OFFICES OF EZEQUIEL REYNA, JR., L.L.P.

Patricia C. Martinez
Paralegal for SAN JUANITA R. CAMPOS

/pcm

Enclosures: as stated